

a neutral guardian ad litem. His authority “continue[d] only to carry out the acts necessary to comply with this order.” He was invited to move to intervene.

Since that December 11, 2025 order, the parties have put before the Court ongoing disputes, but have not managed to comply with the Court’s order to select another Guardian Ad Litem. Instead, they have dug their heels in, with one side suggesting some GALs, the other side opposing, and neither side wavering to find alternatives. At this time, as the Court previously indicated, it is not certain that Betty Karris requires a GAL.

The subpoenas at issue were served in Plaintiff Betty Karris’s name, by a GAL who should no longer be the GAL except to effectuate the prior order. They are therefore of tenuous validity. Given the nature of the subpoenas and the procedural posture of this case, the Motion to Quash as to the attorney subpoenas is **granted**. This is not a ruling on the merits of the subpoenas, but given the sensitive nature of the information they seek and that Harry Karris has been informed by the Court that he has no ongoing authority as GAL except in a limited capacity not applicable here, they cannot stand. Although the medical records are similarly situated, when they issued, Harry Karris *was* the GAL and they relate to information necessary to move this case forward; namely Dr. Nancy Hoffman requires them to proceed with her evaluation. The Motion to Quash medical records is therefore **denied** with the following caveat: The medical records shall left sealed until they are in the hands of Dr. Nancy Hoffman. Only she (and any necessary assistants) may review them. She may make copies for her own use, subject to destruction of those copies after her work on this matter is concluded. The originals will be resealed and shall remain sealed until the Court rules on the issues relating to the need for a GAL and a new GAL is appointed. The Court truly hopes the parties can agree on who is trustworthy enough to maintain sealed files in their office, but if the parties cannot agree, they can be housed with the Court.

12. 9:00 AM CASE NUMBER: C25-02680
CASE NAME: NATHAN STEINLE VS. PREMDIP DHOOT
***HEARING ON MOTION IN RE: RELATE/COORDINATE CASES**
FILED BY: STEINLE, NATHAN
TENTATIVE RULING:

Plaintiff Nathan Steinle seeks to coordinate three cases, all arising out of the same series of events, all involve the same defendants (with one minor exception), and all address similar questions of law. The Court received no timely opposition.

The instant case is C25-02680, Nathan Steinle v. Premdip Dhoot. It is the earliest-filed case. The Court will therefore coordinate with this case the two related cases: 98 Colima, LLC v. HD 2670 Walnut Blvd Member, LLC, et al., C25-02681 and Ascent Investments Company, LLC v. HD 2670 Walnut Blvd Member, LLC, et al., C25-02683. All future hearings in these two matters are vacated and reset to align with hearings in C25-02680.

13. 9:00 AM CASE NUMBER: C25-02730

CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP

***HEARING ON MOTION IN RE: TO SUSTAIN DEFAULT**

FILED BY: WYRZYKOWSKI, TADEUSZ

TENTATIVE RULING:

Before the Court is Plaintiff's Motion to Sustain Default.

Plaintiff's Motion is **denied** as set forth below.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered on that same date. On January 23, 2026, Defendant filed a motion to set aside the default. Plaintiff filed the instant motion to 'sustain default' on January 26.

Defendant's motion to set aside was set for hearing on April 30. The Court issued its tentative ruling granting the motion on April 29. As Plaintiff did not contest the tentative in accordance with Local Rule 3.43, the tentative became the order of the Court – granting the motion to set aside the default.

Initial Issues

Every motion must include a notice of motion along with the memorandum in support. (Cal. R. Ct. 3.1112 (a).) The notice must include the date, time, and location of any scheduled hearing along with other information, including the basis for the motion. (Cal. R. Ct. 3.1110.) "A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of motion." (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.) "The purpose of the notice requirement 'is to cause the moving party to 'sufficiently define the issues for the information and attention of the adverse party and the court.'" (*Ibid.*)

The motion must also be filed and served upon all parties at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005 (b).) The moving party **must file** a proof of service confirming that the papers were served upon the other parties in the case. (Cal. R. Ct. 3.1300 (c) emphasis added.)

The Court notes that Plaintiff's motion does not include a notice of motion. There is no indication on Plaintiff's papers of the date, time, or location for the hearing. Additionally, Plaintiff has failed to file a proof of service confirming that the papers were properly served on Defendant.

"[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (*Rappleyea v. Campbell* (1994)